

If a crime prosecutable by the ICC is committed, there are three ways to bring a case.

The government of the country in which that crime is committed **refers the case to the ICC** for prosecution.

The prosecutor of the ICC can authorize an investigation into a situation in **a country that is signed up** to the ICC.

The UN Security Council instructs the ICC to **investigate the case**.

into its own domestic law. People who commit international crimes can then be dealt with in their own country. The ICC only prosecutes someone when a country is unwilling or unable to do so. This is known as the complementarity principle, but it has been criticized as skewed, because it is easier for richer countries with more developed and stable legal systems to carry out prosecutions than those where, for example, the legal system may have collapsed.

The president of Kenya, Uhuru Kenyatta, was charged with crimes against humanity in relation to incidents of postelection violence in Kenya in 2007 and was referred to the ICC 3 years later. He was one of six suspects considered responsible for instigating the violence, but the charges against him were later dropped due to a lack of evidence. In 2009, the ICC issued an arrest warrant for Omar al-Bashir, the then president of Sudan, for crimes against

humanity, war crimes, and genocide in the Darfur region of Sudan. He was the first head of state to be indicted by the ICC. The Court followed the principle that even heads of state cannot expect legal immunity from prosecution in the context of such serious charges.

Criticism of the ICC

To date, the US, Russia, and China have refused to join the ICC. Because these countries are permanent members of the United Nations Security Council, there is no effective way to prosecute any crimes committed by them on their own territory, because they can simply veto any UN Security Council Resolution involving the ICC. However, that evasion does not apply with alleged crimes they commit on the territory of an ICC member. Both the UK and France are permanent members of the UN Security Council and the ICC. The ICC conducted an investigation into the conduct of British forces in Iraq in the mid-2000s, but this

Sudanese president Omar al-Bashir (center, holding up his cane) was charged with instigating the Darfur genocide, the first of the 21st century, in which up to 400,000 people died.

